

PRIVACY POLICY
related to
MOTOHOM Website
(Version 1.0)

Privacy Policy

This Privacy Policy applies to www.MOTOHOM.co.in

We at MOTOHOM PRIVATE LIMITED (in short 'MOTOHOM', 'we', 'us', 'our') are committed to protecting and respecting your personal data privacy and complying with data protection principles and provisions under applicable laws.

We may collect, process, use and disclose your information when you use this website www.MOTOHOM.co.in..... (henceforth, 'MOTOHOM Platform') and the services offered by MOTOHOM or the third party operators (the 'Operators') through MOTOHOM Platform (the 'Services') as described in this Privacy Policy. 'You' and 'your' when used in this Privacy Policy includes any person who accesses MOTOHOM Platform or use and avails the Services.

This Privacy Policy sets out the basis and terms upon which MOTOHOM collects, processes, uses and/or discloses your information that is obtained from you when you access MOTOHOM Platform and/or use the Services. Such information may include personal information relating to or linked to a specific individual such as name, residential address, telephone number, mobile number, email address, location, age, date of birth, or any such information we have requested and you have provided through MOTOHOM Platform ('Personal Information').

We value your privacy and appreciate your trust in us. This Policy describes how we treat user information we collect on <https://www.MOTOHOM.co.in> and other offline sources. This Privacy Policy applies to current and former visitors to our website and to our online customers. By visiting and/or using our website, you agree to this Privacy Policy.

Please read this Privacy Policy carefully. By visiting MOTOHOM Platform, you are consenting to the collection, processing, usage and disclosure of your Personal Information as set out in this Privacy Policy.

1. Scope of Terms

1.1 MOTOHOM reserves the right to update, amend or modify the terms of this Privacy Policy or any part of it without prior notice, and your continued access of MOTOHOM Platform or use of the Services signifies your acceptance of the updated, amended or modified Privacy Policy, unless if the changes reduce your rights in which case we will ask for your consent. If you do not agree to all the terms and conditions in this Privacy Policy and/or any subsequent updates, amendments or modifications thereto, you must stop accessing or otherwise using MOTOHOM Platform and the Services.

1.2 Accordingly, please visit this page if you wish to access and view the current version of this Privacy Policy.

2. Collection of Information

2.1 We may collect Personal Information about you that you provide to us while using MOTOHOM Platform and information about how you use MOTOHOM Platform including when you open your user account ('User Account'), visit MOTOHOM Platform or make payment for subscriptions, payments for availing the transport services, purchase of related products, or using other available services. Providing your Personal Information to MOTOHOM is always on a voluntary basis. However, we might not be able to provide you with certain Services if you choose not to give us your Personal Information. For example, we cannot open your user account or make arrangements to avail our booking services, for you if we do not collect your name and contact details.

2.1.1) Opening Your User Account:

When you open with us a User Account or amend any information of your User Account, we may collect your Personal Information, such as your name, email address, username, password and telephone or mobile number.

2.1.2) Visit MOTOHOM Platform, for availing our special vehicle booking / services or other related products / services or using the Platform:

When you visit MOTOHOM Platform (even you have not registered an User Account or logged in), to use the Services, we may collect and process certain information (which may contain your Personal Information or may contain non-personally identifiable information but nevertheless linked to your Personal Information) including but not limited to those set out below:

- (a) Copies of correspondence (whether by e-mail, instant or personal messaging or otherwise) between you and us, and between you and the Operators;
- (b) Information necessary to fulfill your reservations, subscriptions, renewals - age, and date of birth;
- (c) Photograph during profile updates
- (d) Transactions performed which can identify you as an individual through your customer ID or other relevant unique identifier
- (e) Details of your usage of MOTOHOM Platform (including traffic data, location data and length of user sessions);
- (f) Feedback on and responses to surveys conducted by MOTOHOM relating to the Services and newsletters which may be published, circulated or distributed by MOTOHOM;
- (g) Information automatically collected and stored in our server or the server of our third party services provider by using or accessing to MOTOHOM Platform (including the log-in name and password for your User Account, your computers Internet Protocol (IP) address, browser type, browser information, device information (including unique device identifier), pages visited, previous or subsequent sites visited).

2.1.3) When you use your mobile devices to visit MOTOHOM Platform, we may collect information about you and your mobile device as stated above. This can include location

information if you have consented and configured your mobile device to send us such information or upload photos with location information to MOTOHOM Platform. Such location information will be used in the ways and for the purposes as stated in this Privacy Policy. For example, we may use your location to suggest nearby Services during your travel or provide personalized content. You can change your mobile device's privacy settings at any time to deactivate the function of sharing location information. Please note some features of MOTOHOM Platform may be affected if you turn off such location sharing function. Should you have any enquiries about your mobile devices' privacy settings, we recommend you contacting your mobile services provider or the manufacturer of your device.

- 2.2 If you make subscriptions, purchases or avail other services for other individuals through the MOTOHOM Platform, we may request personal information about such individual. You must obtain all requisite consent of such individuals and ensure they are aware of, understand and accept this Privacy Policy prior to providing their personal data to MOTOHOM.
- 2.3 On making required subscription / payments for booking of available transports to availing the said services, in the course of such process you will be required to submit and share personal information as applicable. In case you are reluctant to share such details you are advised to abstain from availing our services. Not sharing such details however will not prevent you from participating in any other aspect of services offered by MOTOHOM.

3. Storage of Information

- 3.1 The Personal Information and other data we collect from you may be transferred to, processed, and stored in our servers or the servers of our third party services providers. Your Personal Information will be stored as long as is necessary to fulfill any of the purposes described in this Privacy Policy, or to comply with any (i) contractual requirement that are necessary for the provision of the Services, and (ii) legal, tax or accounting requirement.
- 3.2 When it is no longer necessary for us to process your Personal Information, we will either delete or anonymise the data or, if this is not possible (for example, because your personal information has been stored in backup archives), then we will securely store your personal information.
- 3.3 We will endeavor to anonymise or aggregate your data if we intend to use it for analytical purposes or trend analysis.
- 3.4 MOTOHOM will use reasonable endeavours to maintain appropriate physical, electronic and organisational procedures to ensure that your Personal Information and other data is treated securely and in accordance with this Privacy Policy, and to protect such data against unauthorized access or unauthorized alteration, disclosure or destruction of data.

3.5 Once we have received your information, we will use strict procedures and security features to try to prevent unauthorized access. MOTOHOM does not give any representation, warranty or undertaking that the Personal Information you provide to us will be secure at all times, and to the extent MOTOHOM has fulfilled its obligations under no circumstances shall MOTOHOM be responsible for any losses, damages, costs and expenses which you may suffer or incur arising from unauthorised access to or use of your Personal Information.

3.6 All payment transactions carried out by us or our chosen third-party provider of payment processing services will be encrypted using online encryption technology. You are responsible for keeping your chosen password confidential and not to share your password with any third party.

4. Usage of Information

We process the Personal Information collected in as far as necessary for performance of the contract with and providing services to you. Besides, we process the other Personal Information collected on the basis of our legitimate interests, which are the further improvement of the services and for direct marketing purposes.

For example, MOTOHOM will use Personal Information and other data collected through MOTOHOM Platform or when making payments for availing the booking services, to create your User Account, to fulfill subscriptions, renewals, purchases or avail other services, to provide you with the Services, to continually improve MOTOHOM Platform and the Services, and to contact you in relation to the Services. This includes using your Personal Information or such other data to achieve faster purchase requests, better customer support and to provide you with timely notice of new Services and special offers and schemes.

From time to time, we may also make use of your Personal Information to contact you for feedback on your use of MOTOHOM Platform, to assist us in improving MOTOHOM Platform, or to offer special savings or promotions to you, where you have indicated your consent to receiving such communications. If you would prefer not to receive notices of special savings or promotions, you may simply opt-out from receiving those by replying to us through the hyperlink provided in these notices.

5. Disclosure of Information

5.1 We may from time to time share and disclose your Personal Information and other data to third parties, some of whom may be located outside your home country. The circumstances under which such sharing and disclosure will take place may include without limitation, the following:

5.1.1) To successfully complete your subscriptions, renewals, availing booking services, purchases of any related products or avail other services or to otherwise implement our Terms of Use. We may share your information with Operators or third parties both within and outside your home country, who deliver or provide goods and services or otherwise act on our behalf, as applicable.

5.1.2) If you are a visitor, to the relevant Operator in connection with a Services which you have made subscriptions, renewals, availing booking services,

purchases of any other related products or avail other services or intend to make subscriptions, renewals, avail booking services, purchases of any related products or avail other services.

5.1.3) If you are an Operator, to any visitor in connection with the Services you are offering.

5.1.4) To our third party service providers (including Google Analytics), which we engage amongst others for the performance of certain services on our behalf, such as web hosting services, data analysis, marketing, market research, and to otherwise provide you with customer service.

5.1.5) If and to the extent required by any applicable law, order of court or requests by any governmental authority to make such disclosure.

5.1.6) Within the MOTOHOM group of companies. In case of a corporate transaction, in connection with the sale, merger, acquisition, or other corporate reorganization or restructuring of our corporation, your Personal Information may be disclosed, shared or transferred to the new controlling entity or its authorised third party for carrying on our business.

5.1.7) To our advisors, agencies or other parties concerned in order to protect the rights and property of MOTOHOM.

5.1.8) In any other case, to any third parties with your prior written consent (and in which case we will make it possible for you to withdraw your consent as easily as it was to provide consent).

5.2 We may also share aggregate or anonymous information with relevant third parties, including our advertisers. Such information does not contain any Personal Information and will not identify you personally. However, in some occasions, these third parties may possess information about you or obtain your information from other sources. When they combine such information with our aggregate information, they may be able to identify you personally.

5.3 There may be links present on MOTOHOM Platform which could result in you leaving MOTOHOM Platform and/or being taken to other third party websites. You should note that any Personal Information that you provide to these third party websites are not subject to this Privacy Policy, and MOTOHOM is not liable for any losses, damages, costs or expenses which you may suffer or incur in connection with you providing or making available Personal Information or other data to such third party websites.

5.4 Any information shared by you during personal consultation ("**Confidential Information**") shall be excluded from the definition of Personal Information and shall not be collected/used in the same manner as Personal Information as mentioned above.

Your Confidential Information shall not be disclosed or shared by MOTOHOM, its employees, its agents or any third party contractors, including Experts with any third party, either orally or in writing, except in the following circumstances:

If MOTOHOM believes that there is a significant/ real/ imminent threat or risk to your health, safety or life or to the health, safety or life of any other person or the public;

If MOTOHOM is required to share such Confidential Information to any authority by law; and

If you have claimed a health care insurance and such Confidential Information is required by the insurer, as applicable.

6. Information Security

6.1 MOTOHOM has implemented adequate and industry accepted processes designed to protect Personal Information and maintain security. It is the user's responsibility to protect the security of their login information. MOTOHOM's servers are located in secure server environments. Firewalls and other advanced security technologies are employed to prevent interference or access from outside intruders. These safeguards help prevent unauthorized access, maintain data accuracy, and ensure the appropriate use of information.

6.2 MOTOHOM has taken appropriate steps for the security and protection of our data and digital platforms however we shall not be responsible for any breach of security or disclosure of personal information for reasons outside our control such as hacking, social engineering, cyber terrorism, espionage or any events by way of force majeure such as sabotage, flood, fire, acts of God, civil commotion, strikes or industrial action of any kind, riots, insurrection, war, acts of Government.

6.3 We will strive to keep your personal information confidential and will place reasonable security controls to protect it. Your Personal Information will be kept confidential as required under applicable law.

7. Update/correction/Access of Personal Information

7.1 Based on technical feasibility, We will provide you with the access to your Personal Information. We will perform verification before providing you access to this information.

7.2 You can withdraw the permissions given by you while using the website from the Settings option in the website.

7.3 You may request access, correction and deletion of the information by contacting MOTOHOM at [.....email]

Commented [Ma1]: Confirm

7.4 You may note that deletion of certain information or withdrawal of consent may lead to cancellation of your registration with us or your access to our services. Additionally, we may not be able to process your request of correction, updation or deletion, in case the same is not supported by valid documents or data retention if required by the applicable law or law enforcement requests or under any judicial

proceedings or it is extremely difficult to implement (such as requests related to backup copies or if a new system is required to process the request or change of technical design) or risks the privacy of other users.

7.5 In case of non-compliance with the Terms of Use and Privacy Policy, MOTOHOM reserves the right to remove your non-compliant information from its systems.

8. Cookies

Cookies are widely used in order to make websites work, or work more efficiently. When you visit our Website, we collect some of your Personal Information transmitted to us by your browser via cookies or similar tracking technologies. This enables you to access MOTOHOM Platform and helps us to create better user experience for you. In the process, MOTOHOM uses cookies, beacons, clear gifs, pixel or similar tracking technologies by third-parties for the purpose of online behavioral advertising, end user targeting and cross-device linking and to assist in delivering the service and to provide a positive and personalized user experience. Cookies are files sent to your browser from a web server and stored on your computer's hard drive. Our persistent and session ID Cookies are used to identify unique visitors and to provide a personalized user experience. Beacons are bits of code that function similar to cookies. Our beacons are embedded in outgoing emails and generate a call back to the MOTOHOM server when such emails are opened. MOTOHOM uses beacons to track the status of sent emails. If you do not wish to receive cookies, you may disable them. A pixel is a URL used in a creative to record an impression in an advertiser's system. Pixels may be added to advertisements served on MOTOHOM to record that they are seen by the user.

9. Changes to Privacy Policy

MOTOHOM reserves the right to make changes to this Privacy Policy, and will post any revisions on this page.

10. Governing law and jurisdiction

This Privacy Policy shall be governed by, interpreted and construed in accordance with the laws of India. The place of jurisdiction shall be exclusively in Pune / Mumbai, to determine any disputes arising in relation to, or under, the terms of this Privacy Policy.

11. Grievance Officer

The name and contact details of Grievance Officer are provided below:

NAME:

DESIGNATION:

PHONE NO.

Email Address:

Postal Address:

12. Inquiries

If you have any questions about this Privacy Policy, please contact us by email at(email)

Commented [Ma2]: Confirm

Last updated on February10, 2024